

SENATE No. 3029

The Commonwealth of Massachusetts

In the One Hundred and Ninety-Fourth General Court
(2025-2026)

SENATE, March 23, 2026.

The committee on Senate Ways and Means to whom was referred the Senate Bill fostering agricultural resilience in Massachusetts (Senate, No. 2801), - reports, recommending that the same ought to pass with an amendment substituting a new draft with the same title (Senate, No. 3029).

For the committee,
Michael J. Rodrigues

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An Act fostering agricultural resilience in Massachusetts.

Be it enacted by the Senate and House of Representatives in General Court assembled, and by the authority of the same, as follows:

SECTION 1. Chapter 6A of the General Laws is hereby amended by inserting after section 18AA the following section:-

Section 18BB. The Massachusetts emergency management agency shall develop and maintain a plan to support agricultural, seafood and processed food production in the commonwealth to mitigate the impacts of food supply chain disruptions. The plan shall be developed in coordination with the department of agricultural resources, the department of public health and the department of transitional assistance, and shall include consideration for food production, transportation, storage and distribution. The plan shall be reviewed and updated every 5 years. The director of the Massachusetts emergency management agency shall submit the plan, along with any updates made pursuant to this section, to the clerks of the house of representatives and the senate, the joint committee on agriculture and fisheries and the joint committee on emergency preparedness and management.

SECTION 2. Section 23B of chapter 7 of the General Laws, as appearing in the 2024 Official Edition, is hereby amended by adding the following subsection:-

(d)(1) Notwithstanding any general or special law to the contrary, the state purchasing agent, in collaboration with the commonwealth's 4 regional food banks, the executive office of aging and independence, the department of agricultural resources, the department of transitional assistance, the department of higher education and the department of elementary and secondary education, shall annually, not later than October 31, report on the distribution of products of agriculture, which, for the purposes of this subsection, shall include seafood and processed foods, through food assistance programs that receive state funding. The report shall include, but not be limited to:

(i) the quantity of products of agriculture distributed, by dollar value and as a percentage of total food distributed and, where possible, by weight;

(ii) a breakdown of the types of products of agriculture distributed, including, but not limited to, seafood and processed food, including whether or not the processed food includes ingredients grown, raised or caught in the commonwealth, by dollar amounts and as a percentage of total food distributed and, where possible, by weight;

(iii) the number and names of farms from which products of agriculture are sourced for food assistance programs that receive state funding;

(iv) the quantity of products of agriculture distributed by food assistance programs that receive state funding including, but not limited to, the Massachusetts emergency food assistance program, the Massachusetts healthy incentives program, universal free school meals, the hunger-free campus initiative, the farming reinforces education and student health grant program, the

senior nutrition program, the Meals on Wheels program and the senior farm share program, by dollar amounts and as a percentage of total food distributed and, where possible, by weight; and

(v) recommendations on how the commonwealth can increase the amount of products of agriculture distributed through food assistance programs that receive state funding in future fiscal years while maintaining affordability and fairly valuing local food, as well as budgetary or policy recommendations for implementing such recommendations.

(2) The report shall be made available on the operational service division's website and a copy shall be filed with the clerks of the house of representatives and the senate, the joint committee on agriculture and fisheries and the joint committee on children, families and persons with disabilities.

SECTION 3. The third paragraph of subsection (a) of section 23 of chapter 20 of the General Laws, as so appearing, is hereby amended by inserting after the second sentence the following sentence:-

To determine the extent to which each factor contributed to the enrollment of land in the program, the review may include an assessment of factors including, but not limited to: (i) the suitability and productivity of land for agricultural use based on soil classification, physical features and location; (ii) the degree of threat to the continuation of agriculture on the land due to circumstances including, but not limited to, the landowner's health, retirement, financial positions, development pressure or insecurity due to rental agreements; (iii) the size or composition of the land that determines whether it is economically viable for agricultural purposes, and the likelihood that it will remain in agricultural use in the future; (iv) the estimated amount and type of crop production; (v) soil health, water recharge areas, biodiversity, carbon

sequestration and other ecosystem services; (vi) existing infrastructure located on the land; (vii) access to markets; (viii) access to land ownership for historically marginalized communities; (ix) opportunities to meet or further environmental justice principles as defined by section 62 of chapter 30; and (x) any other factors as determined by the department. The review may evaluate: (A) the number of acres newly enrolled in an agricultural preservation restriction during the past year and the total number of acres enrolled in an agricultural preservation restriction in the commonwealth; (B) the total number of farms that have acquired a new agricultural preservation restriction during the past year and the total number of farms holding an agricultural preservation restriction in the commonwealth; (C) the geographic distribution of farms enrolled in an agricultural preservation restriction; and (D) challenges to enrolling new land in an agricultural preservation restriction.

SECTION 4. Said Chapter 20 is hereby further amended by adding the following section:-

Section 34. Subject to appropriation, there shall be established a food security infrastructure grant program to support equitable access to healthy, local food and to strengthen food supply and distribution systems in all geographic regions of the commonwealth, which shall be administered by the commissioner. The commissioner may award grants under the program to: (i) food producers, processors and distributors; (ii) emergency food distributors; (iii) community and food organizations; (iv) school meal programs and summer meal sponsors; (v) urban farms and community gardens; and (vi) nonprofit food security organizations; provided, however, that grants awarded under this section shall be to fund capital improvements, including, but not limited to: (A) the purchase of new or used equipment; (B) contracted labor costs in order to implement projects; and (C) costs associated with planning and design directly related to

capital projects that strengthen and improve the resiliency of the commonwealth's food system while facilitating greater access to fresh, local food and addressing systemic inequities.

SECTION 5. Chapter 21G of the General Laws is hereby amended by adding the following section:-

Section 21. Registration statements and permits for withdrawals for use in cranberry production may be transferred to and used for mitigation by other permitted or registered users.

SECTION 6. Section 2WWW of chapter 29 of the General Laws, as appearing in the 2024 Official Edition, is hereby amended by adding the following subsection:-

(l) Monies in the fund may be transferred to the Next Generation Farmers Fund established in section 2000000.

SECTION 7. Chapter 29 of the General Laws is hereby amended by inserting after section 2NNNNNN the following 2 sections:-

Section 2000000. (a) There shall be established and set up on the books of the commonwealth a separate, non-budgeted special revenue fund to be known as the Next Generation Farmers Fund. The fund shall be administered by the secretary of labor and workforce development, in consultation with the secretary of energy and environmental affairs, the secretary of education and the commissioner of agricultural resources.

(b) The fund shall be credited with: (i) revenue from appropriations or other money authorized by the general court and specifically designated to be credited to the fund; (ii) funds from public or private sources, including gifts, grants, donations, rebates and settlements received by the commonwealth that are specifically designated to be credited to the fund; and

(iii) interest earned on any money in the fund. Amounts credited to the fund shall be expended without further appropriation, and the unexpended balance in the fund at the end of a fiscal year shall remain available for expenditure in subsequent fiscal years. No expenditure made from the fund shall cause the fund to be in deficit at any point. Money in the fund shall be awarded as grants for the purpose of agricultural workforce development to public institutions of higher education, vocational technical schools and community-based organizations with existing programs for providing workforce development training to entry-level farmers or the capacity to create such programs. Priority consideration shall be given to programs that serve a high percentage of historically underserved or low-income students or people with disabilities, programs operated by nonprofit organizations that house homeless veterans and include food production or distribution training and programs that include hands-on training and training in agricultural practices that mitigate climate change and protect the environment.

(c) Annually, not later than May 30, the secretary of labor and workforce development shall submit a report detailing the expenditures of the fund to the clerks of the house of representatives and the senate, the house and senate committees on ways and means, the joint committee on economic development and emerging technologies and the joint committee on agriculture and fisheries.

Section 2PPPPPP. (a) For the purposes of this section, the following words shall have the following meanings unless the context clearly requires otherwise:-

“Vacant lot”, a parcel which is not actively used or occupied and that has not been actively used or occupied within at least the preceding year, including, but not limited to,

abandoned, empty and foreclosed properties. “Vacant lot” shall not mean a parcel which is the site of ongoing renovations or repairs due to fire or other casualty.

“Urban agriculture”, an activity which meets the definition of agriculture in section 1A of chapter 128 and takes place in urban and suburban areas and which shall include, but not be limited to, recreational and educational farming and gardening and other agricultural enterprises.

(b) There shall be established and set up on the books of the commonwealth a separate, non-budgeted special revenue, fund to be known as the Vacant Lots to Urban Agriculture Fund. The fund shall be administered by the department of agricultural resources and shall be credited with: (i) revenue from appropriations or other money authorized by the general court and specifically designated to be credited to the fund; (ii) funds from public and private sources such as gifts, grants and donations; and (iii) interest earned on monies in the fund. Amounts credited to the fund shall not be subject to further appropriation and any money remaining in the fund at the end of a fiscal year shall not revert to the General Fund and shall remain available for expenditure in subsequent fiscal years. No expenditure made from the fund shall cause the fund to be in deficit at any point.

(c) The purpose of the fund shall be to support the introduction of urban agriculture to vacant lots. Priority consideration shall be given to projects located in socially or economically disadvantaged communities that support increased economic development, food security, climate and heat resilience, agricultural education, job training, donation of food to food-insecure residents, public engagement, utilization of controlled-climate growing infrastructure and agricultural systems or other agricultural practices backed by climate science. Grants from the fund shall be awarded for: (i) municipalities to collaboratively develop urban agriculture plans

with residents, local food system businesses, nonprofit organizations or other organizations and regional planning agencies; (ii) municipalities, urban agriculture organizations or businesses to assist in the purchasing of privately owned parcels; (iii) municipalities, urban farming businesses or nonprofit organizations to purchase or lease land, renovate land, build infrastructure or assist in urban agriculture startup costs; (iv) establishing pilot programs in socially or economically disadvantaged communities to introduce urban agriculture to vacant lots; (v) moving a municipally-held tax land lien that was foreclosed to agricultural use; or (vi) protecting a parcel with a conservation easement.

(d) The department of agricultural resources shall provide outreach and application materials for the grant program in multiple languages.

(e) The commissioner of agricultural resources shall promulgate regulations for the administration and implementation of this section.

(f) Annually, the commissioner of agricultural resources shall file a report with the house and senate committees on ways and means, the joint committee on agriculture and fisheries and the clerks of the house of representatives and the senate including, but not limited to: (i) a list of grant applicants and the municipalities in which the vacant lots are located; (ii) a list of grant recipients and the municipalities in which the vacant lots y are located; (iii) the amount of funds requested by applicants; (iv) the associated awarded grant amounts; and (v) the number of socially or economically disadvantaged populations served by the awards made by the fund.

SECTION 8. Section 20 of chapter 30B of the General Laws, as appearing in the 2024 Official Edition, is hereby amended by adding the following subsection:-

(c) The department of agricultural resources shall, conduct a public information campaign to notify governmental bodies of the program to establish a preference for products of agriculture as defined in section 1A of chapter 128 not less than every 5 years. The department may develop a mechanism for a governmental body that establishes a preference under subsection (a) to notify the department of such vote to establish such preference.

SECTION 9. Section 3 of chapter 40A of the General Laws, as so appearing, is hereby amended by striking out, in lines 6 and 7, the words “or viticulture,” and inserting in place thereof the following words:- , viticulture or for agritourism, as defined in section 1B of chapter 128, on land used for the primary purpose of commercial agriculture, aquaculture, silviculture, horticulture, floriculture or viticulture.

SECTION 10. Section 2A of chapter 61A of the General Laws, as so appearing, is hereby amended by adding the following subsection:-

(e)(1) As used in this subsection, the following words shall have the following meanings unless the context clearly requires otherwise:

“Commissioner”, the commissioner of the department of agricultural resources.

“Department”, the department of agricultural resources.

“Farmland”, land primarily and directly used for agricultural purposes pursuant to section 1 or land primarily and directly used for horticultural purposes pursuant to section 2.

“Farm viability”, the financial and environmental ability of a farm to remain in operation and produce crops over the short and long term.

(2) Notwithstanding any general or special law to the contrary, the department, in coordination with the department of energy resources, shall, once every 10 years or at such other frequency as determined by the commissioner, whichever is more frequent, review and consider whether any amendments to statutory, regulatory and deed-based restrictions on the amount of renewable energy allowed to be generated on farmland, including, but not limited to, land assessed or taxed under this chapter and land in the agricultural preservation restriction program established pursuant to section 23 of chapter 20, would help preserve or improve farm viability while considering the commonwealth's renewable energy goals pursuant to the roadmap plans required under section 5 of chapter 21N. The department shall, in their consideration of whether and which amendments to recommend, consider whether alternative measures such as updated or modernized farm management or business practices could achieve the same or similar improvements in farm viability as well as the commonwealth's current ability to support farmers in updating said practices. The department shall additionally factor into its review and consideration the impact on food production in the commonwealth, the promotion of healthy soils and biodiversity, environmental sustainability and the commonwealth's renewable energy goals pursuant to the roadmap plans required under section 5 of chapter 21N. If the department concludes that amendments to the restrictions on the amount of renewable energy allowed to be generated on farmland are warranted, the commissioner shall include a list of the department's specific recommended amendments in the department's report.

(3) The department, not later than 90 days after the completion of the review under paragraph (2), shall report the findings of its review to the clerks of the house of representatives and the senate, the house and senate committees on ways and means, the joint committee on agriculture and fisheries and the joint committee on environment and natural resources.

SECTION 11. Said chapter 61A is hereby further amended by adding the following section:-

Section 25. (a) As used in this section, the following words shall have the following meanings unless the context clearly requires otherwise:

“Agricultural land”, land deemed to be in agricultural use pursuant to section 1.

“Horticultural land”, land considered to be in horticultural use pursuant to section 2.

(b) The department of agricultural resources shall, in consultation with the department of revenue, shall establish and maintain a central registry of all agricultural and horticultural land in the commonwealth. The department of agricultural resources shall update the registry on a biennial basis or at such other frequency as determined by the commissioner of the department of agricultural resources, whichever is more frequent. The commissioner of agriculture shall facilitate information sharing among federal, state and local entities. The registry shall include, but not be limited to:

(i) in total and in each municipality, the number of parcels and the number of acres of agricultural land and horticultural land;

(ii) in total and in each municipality, the number of parcels and the number of acres of agricultural land and horticultural land taxed pursuant to this chapter;

(iii) in total and in each municipality, the number of parcels and the number of acres of agricultural land and horticultural land that were disqualified from taxation pursuant to this chapter during the preceding tax year;

(iv) in total and in each municipality, the number of parcels and the number of acres of agricultural land and horticultural land that are taxed pursuant to this chapter that were not taxed pursuant to this chapter in the preceding tax year; and

(v) the percentage of all cropland in the commonwealth, as reported in the most recent United States Department of Agriculture Census of Agriculture, that is taxed pursuant to this chapter.

(c) The department of agricultural resources shall, in consultation with the department of revenue, integrate the data from the central registry established pursuant to subsection (b) into a publicly accessible, interactive map with data shown at both the individual parcel and municipal level. The map shall be created in a format that allows for comparison and overlays with existing maps of soil conditions and types. The department shall make the central registry and the map publicly available, downloadable and searchable on its website.

SECTION 12. Chapter 69 of the General Laws is hereby amended by adding the following section adding the following section:-

Section 40. (a) (1) The department shall, subject to appropriation, administer a Massachusetts farm-to-school program, consisting of a grant program to strengthen the commonwealth's food and agriculture economy, improve student health and nutrition and build food literacy among students. The program shall build the capacity of primary and secondary schools and licensed childcare programs to purchase ingredients grown, raised, caught and processed in the commonwealth.

(2) The department shall establish an advisory committee to advise the department on the development and administration of the farm-to-school program. The committee shall include a

representative from each of the department of agricultural resources, the department of early education and care, the division of marine fisheries, Massachusetts Farm to School and the School Nutrition Association of Massachusetts, Inc., and a geographically and demographically diverse group of stakeholders appointed by the commissioner.

(b) Annually, the department shall submit a report of the farm-to-school program's activities to the clerks of the house and the senate, the house and senate committees on ways and means, the joint committee on agriculture and fisheries and the joint committee on education, which shall include, but not be limited to: (i) the number, type of organization and award amount to grantees; (ii) details of food literacy education associated with the program; and (iii) any recommendations to improve the performance of the program.

SECTION 13. Section 14D of chapter 75 of the General Laws, as so appearing, is hereby amended by striking out the second and third paragraphs and inserting in place thereof the following 2 paragraphs:-

The board shall consist of the president of the university or a designee; the chancellor of the University of Massachusetts at Amherst or a designee; the commissioner of food and agriculture or a designee; and the following persons to be appointed by the governor: 3 members of Massachusetts Farm Bureau Federation, Incorporated chosen from a list of 12 members submitted by said federation; 1 member of Massachusetts 4-H Foundation, Inc. chosen from a list of 3 members submitted by said organization; 1 member of the Massachusetts Forestry Association, Inc. chosen from a list of 3 members submitted by said association; 1 member of Massachusetts Audubon Society, Inc. chosen from a list of 3 members submitted by said society; 2 members of Massachusetts Arborists Association, Inc. chosen from a list of 5 members

272 submitted by said association; 1 member of a regional agriculture Buy Local organization chosen
273 from a list of 3 members submitted by said organization; 1 member of the Massachusetts Food
274 System Collaborative chosen from a list of 3 members submitted by said collaborative; 1
275 member from an organization engaged in urban farming education or practices; 2 members of
276 organizations that support historically marginalized or new entry farmers and food producers;
277 and the senate and house chairs of the joint committee on agriculture and fisheries, or their
278 designees, who shall be nonvoting members. The chancellor of the University of Massachusetts
279 at Amherst shall appoint the chair from among the membership of the board. Members of the
280 board shall serve without compensation but shall be reimbursed, subject to appropriation, out of
281 any funds available for the purpose, for necessary expenses incurred in the performance of their
282 official duties. Non-voting members shall serve on the board in an advisory capacity and shall
283 not be reimbursed for necessary expenses.

284 The appointed members of the board shall serve for terms of 5 years, except for persons
285 appointed to fill vacancies, who shall serve for the unexpired term. The board shall hold an
286 annual meeting in January and not less than 3 other times during the year. The University of
287 Massachusetts Extension director shall attend all meetings of the board and shall serve as
288 secretary but shall have no vote in its deliberation. A simple majority of appointed voting
289 members of the board shall constitute a quorum. The board may, by vote of its members then in
290 office, adopt a policy for the conduct of business, including constitution of board membership.
291 Policies may be amended or repealed by a 2/3 vote of its members.

292 SECTION 14. Chapter 128 of the General Laws is hereby amended by inserting after
293 section 1A the following section:-

Section 1B. (a) “Agritourism”, an agriculturally related educational, entertainment, historical, cultural, commercial or recreational activity that allows or invites members of the general public to observe, participate in, experience and enjoy that activity, and serves to encourage the purchase of agricultural products that are produced on the land where the activity takes place, or on other land within the commonwealth that is primarily used for commercial agriculture, aquaculture, silviculture, horticulture, floriculture or viticulture and that is owned by the same person as the land where the activity takes place; provided, however, that the activity is conducted on land primarily used for commercial agriculture, aquaculture, silviculture, horticulture, floriculture or viticulture as provided in section 3 of chapter 40A.

(b) The department shall promulgate regulations that include minimum land and revenue thresholds for agritourism activities; provided, however, that such regulations shall ensure that agritourism activities shall not unreasonably detract or derogate from agricultural production.

SECTION 15. Said chapter 128 of the General Laws is hereby amended by inserting after section 2E the following section:-

Section 2F. (a) The department of transitional assistance, in partnership with the department of agricultural resources and the department of public health, shall, subject to appropriation, operate a healthy incentives program. The program shall provide that Supplemental Nutrition Assistance Program benefits, established pursuant to the Food and Nutrition Act of 2008, 7 U.S.C. section 2011 hereinafter referred to as SNAP, redeemed for fruit and vegetable purchases, either fresh, canned, dried or frozen, by a SNAP recipient at a participating vendor, shall entitle the recipient to receive a matching benefit reimbursed on the recipient’s electronic benefit transfer card, within limits to be established by the department.

When expanding the number of participating vendors, the department shall prioritize improving access in areas with limited access to fresh, local produce and that are historically underserved by the program. The department shall collaborate with local food coalitions and nonprofit groups to develop community outreach strategies that ensure equitable access to, and knowledge of, the program.

(b) The department of transitional assistance and its partners may apply for any available federal programs such as the Gus Schumacher Nutrition Incentive Program administered by the United States department of agriculture to provide matching benefits.

(c) The department of transitional assistance shall, annually on or before January 31, submit a report of the healthy incentives program's activities to the clerks of the house and the senate, the house and senate committees on ways and means, the committee on children, families and persons with disabilities and the committee on agriculture and shall post the report on the department's website. The report shall include, but not be limited to: (i) the number of households utilizing the program, including household size, age and racial demographic information; (ii) the number of program transactions; (iii) the number and name of vendors processing program transactions; (iv) a breakdown of the total number of program participants and vendors, by their municipality; (v) the number of vendors, by their municipalities, who applied to be a vendor with the healthy incentives program but were not accepted as a vendor due to funding or administrative shortages; (vi) the department's efforts, plans and timeline for identifying geographic areas that are underserved by the program and increasing program activity in those areas, including metrics and factors to be used to make determinations for the addition and siting of vendors; and (vii) any further recommendations to improve the performance of the program.

339 SECTION 16. Not later than 1 year following the effective date of this act, the
340 Massachusetts emergency management agency shall complete the first plan required under
341 section 18BB of chapter 6A of the General Laws.

342 SECTION 17 Not later than 120 days following the effective date of this act, the
343 department of agricultural resources shall promulgate regulations to implement section 34 of
344 chapter 20 of the General Laws.

345 SECTION 18. Not later than December 31, 2026, the department of environmental
346 protection shall establish regulations necessary to implement section 21 of chapter 21G of the
347 General Laws.

348 SECTION 19. Not later than 6 months following the effective date of this act, the
349 department of agricultural resources shall complete the first report required by subsection (e) of
350 section 2A of chapter 61A of the General Laws.

351 SECTION 20. Not later than 1 year following the effective date of this act, the
352 department of revenue shall establish and host on its website the registry and map required
353 pursuant to section 25 of chapter 61A of the General Laws.